

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE ENROLLED ACT No. 291

AN ACT to amend the Indiana Code concerning courts and court officers.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 33-23-19 IS ADDED TO THE INDIANA CODE AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]:

Chapter 19. Protection of Personal Information

Sec. 1. As used in this chapter, "protected individual" means a:

- (1) current or retired judge (as defined in IC 33-38-12-3);**
- (2) current or retired justice, judge, or magistrate of a federal court domiciled in Indiana; and**
- (3) spouse, child, or dependent who resides in the same household as an individual described in subdivisions (1) and (2).**

Sec. 2. As used in this chapter, "personal information" includes the following:

- (1) A home address.**
- (2) A home telephone number.**
- (3) A mobile telephone number.**
- (4) A personal electronic mail address.**
- (5) A Social Security number.**
- (6) A driver's license number.**
- (7) A federal tax identification number.**
- (8) A credit or debit card number.**
- (9) A bank account number.**

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- (10) A license plate number or a unique identifier of a vehicle.
- (11) A birth or marital record.
- (12) Date of birth.
- (13) A home address displayed on any of the following:
 - (A) Voter registration or property tax information.
 - (B) Election and campaign finance reports.

The term does not include information that has been publicly disclosed with the consent of the judicial officer or judge.

Sec. 3. As used in this chapter, "publish" means to post or otherwise make available to the general public on the Internet, social media, or social networks.

Sec. 4. (a) A protected individual, or the office of judicial administration on behalf of a protected individual, may submit a written request to a public agency (as defined in IC 5-14-3-2(q)) to:

- (1) prevent publication of personal information of the protected individual; or
- (2) remove personal information of the protected individual from an existing publication.

(b) A request made under subsection (a) must be sent by certified mail or electronic mail and contain the following:

- (1) Sufficient information to confirm that the person subject to the request is a protected individual.
- (2) A description of the document, posting, or other publication containing the personal information that is sought to be removed.

A request made by the office of judicial administration that certifies that the person subject to the request is a protected individual is sufficient for the purposes of subdivision (1).

(c) Not later than one (1) day after receiving a request under this section, a public agency shall acknowledge receipt of the request.

(d) After receiving a request under this section, a public agency shall:

- (1) as soon as practicable, take action necessary to ensure that the personal information of the protected individual is not published; or
- (2) not later than three (3) days after receipt of the request, remove all personal information of the protected person from publication.

(e) A protected individual or the office of judicial administration may bring a civil action against a public agency for a violation of subsection (d). A prevailing party may recover:



- (1) actual damages;
- (2) declaratory relief;
- (3) injunctive relief; and
- (4) costs and reasonable attorney's fees.

A court may also award punitive damages if the court finds that the defendant willfully refused to remove the personal information of a protected person.

SECTION 2. IC 33-24-5 IS REPEALED [EFFECTIVE UPON PASSAGE]. (Supreme Court Sheriff).

SECTION 3. IC 33-24-5.1 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]:

Chapter 5.1. Supreme Court Marshal

Sec. 1. As used in this chapter, "supreme court marshal" refers to an appointed supreme court marshal and a deputy marshal hired by an appointed supreme court marshal under section 2(b) of this chapter.

Sec. 2. (a) The supreme court may appoint a court marshal.

(b) A marshal appointed under subsection (a) has the authority to hire deputy marshals to assist with the duties required under this chapter.

(c) A supreme court marshal serves at the pleasure of the chief justice until the supreme court terminates the court marshal's service by an order of the court.

Sec. 3. (a) A supreme court marshal is responsible for the following:

- (1) Ensuring the safety and security of:
 - (A) the justices; and
 - (B) staff;

of the supreme court, including the appellate clerk's office, all primary office locations, offsite venues, and judicial residences.

(2) Attending the court during term time.

(3) Preserving order within the court.

(4) Communicating with law enforcement agencies on behalf of the court.

(5) Providing trial courts with security assessments, including education and advice on security needs of judges and court staff.

(6) Maintaining security systems at the state house, court staff offices, and the homes of supreme court justices.

(7) Coordinating and providing security for events within



Indiana that involve the justices or staff of the court.

(8) Any additional duties as assigned by the chief justice.

(b) Upon receipt of a process, rule, or order, a supreme court marshal may transmit the process, rule, or order to the sheriff of the county within which the process, rule, or order is to be served.

Sec. 4. (a) When acting in an official capacity, a supreme court marshal may:

(1) act as security for judicial officers and court staff in any county in Indiana;

(2) use any force necessary to carry out the duties described in section 3 of this chapter;

(3) carry a weapon, including a firearm, on public and private property; and

(4) access the following information for official court security purposes only:

(A) Criminal history record information, including limited and full records, obtained through state or federal criminal justice information systems.

(B) Records of the bureau of motor vehicles, including driver's license information, vehicle registration data, and associated identifying information.

(C) Sensitive law enforcement intelligence information, including threat assessments, alerts, bulletins, and intelligence products, when the information:

(i) relates to the safety and security of a supreme court justice, court staff, court facilities, or court proceedings; and

(ii) is provided by, or accessed through, a law enforcement agency or criminal justice information system authorized to disseminate the information.

(b) Information described in subsection (a)(4)(C) may only be accessed in relation to a threat assessment, officer safety, protective operations, and the prevention or mitigation of threats to court security. A supreme court marshal shall comply with all applicable state and federal laws, rules, and policies governing the access, use, dissemination, retention, and confidentiality of the information obtained. Unauthorized access, use, or dissemination of information obtained under subsection (a)(4)(C) is prohibited.

(c) A supreme court marshal has limited police powers, including a limited power to detain, to carry out the requirements of this chapter. A supreme court marshal shall notify the local law enforcement agency as soon as practicable when a security threat



is detected. A supreme court marshal may not respond to local emergencies or incidents not related to court security. A supreme court marshal shall defer to local law enforcement to effect any arrest necessary, including the processing of an individual or pursuit of criminal charges.

Sec. 5. A supreme court marshal is entitled to qualified immunity for acts performed in the course of official duties required under this chapter.

SECTION 4. IC 33-25-4-1 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 1. The clerk ~~and sheriff~~ of the supreme court shall be clerk ~~and sheriff~~ of the court of appeals.

SECTION 5. IC 33-25-4-4 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION** TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 4. (a) The court of appeals may appoint a court marshal.

(b) A court marshal appointed under subsection (a):

- (1) serves at the pleasure of the court of appeals until the court of appeals terminates the court marshal's service by an order of the court;
- (2) provides for the safety and security of the court of appeals and the tax court; and
- (3) has the authority to hire deputy marshals to assist with the duties required under this chapter.

SECTION 6. IC 33-25-4-5 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION** TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 5. A:

- (1) court marshal appointed; or
- (2) deputy court marshal hired;

under section 4 of this chapter is entitled to qualified immunity for acts performed in the course of official duties required under this chapter.

SECTION 7. IC 33-25-4-6 IS ADDED TO THE INDIANA CODE AS A **NEW SECTION** TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 6. (a) A court marshal appointed under section 4 of this chapter is responsible for the following:

- (1) Ensuring the safety and security of:
 - (A) the judges; and
 - (B) staff;

of the court of appeals and the tax court at all primary office locations, offsite venues, and judicial residences.

- (2) Attending the court of appeals and the tax court during



term time.

(3) Subject to subsection (b), executing:

(A) the orders of the court of appeals and the tax court;
and

(B) all processes, including civil processes, issued out of the court of appeals and the tax court.

(4) Preserving order within the court of appeals and the tax court.

(5) Supervising deputy court marshals hired under section 5 of this chapter.

(6) Communicating with law enforcement agencies on behalf of the court of appeals and the tax court.

(7) Maintaining a security system at the state house, staff offices, and the homes of judges of the court of appeals and the tax court.

(8) Coordinating and providing security for events involving the judges or staff of the court of appeals and the tax court.

(9) Any additional duties as assigned by the chief judge of the court of appeals.

(b) Upon receipt of a process, rule, or order from the court of appeals or the tax court, a court marshal may transmit the process, rule, or order to the sheriff of the county within which the process, rule, or order is to be served.

SECTION 8. IC 33-25-4-7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 7. (a) When acting in an official capacity, a court marshal and a deputy court marshal may:

(1) act as security for judicial officers and court staff in any county in Indiana;

(2) use any force necessary to carry out the duties described in section 6 of this chapter;

(3) carry a weapon, including a firearm, on public and private property; and

(4) access the following information for official court security purposes only:

(A) Criminal history record information, including limited and full records, obtained through state or federal criminal justice information systems.

(B) Records of the bureau of motor vehicles, including driver's license information, vehicle registration data, and associated identifying information.

(C) Sensitive law enforcement intelligence information,



including threat assessments, alerts, bulletins, and intelligence products, when the information:

- (i) relates to the safety and security of a court of appeals and the tax court judge, court staff, court facilities, or court proceedings; and
- (ii) is provided by, or accessed through, a law enforcement agency or criminal justice information system authorized to disseminate the information.

(b) Information described under subsection (a)(4)(C) may only be accessed in relation to a threat assessment, officer safety, protective operations, and the prevention or mitigation of threats to court security. A court marshal or a deputy court marshal shall comply with all applicable state and federal laws, rules, and policies governing the access, use, dissemination, retention, and confidentiality of the information obtained. Unauthorized access, use, or dissemination of information obtained under subsection (a)(4)(C) is prohibited.

(c) A court marshal and a deputy court marshal have limited police powers, including a limited power to detain, to carry out the requirements of this chapter. A court marshal or a deputy court marshal shall notify the local law enforcement agency as soon as practicable when a security threat is detected. A court marshal and a deputy court marshal may not respond to local emergencies or incidents not related to court security. A court marshal and a deputy court marshal shall defer to local law enforcement to effect any arrest necessary, including the processing of an individual or pursuit of criminal charges.

SECTION 9. IC 34-30-2.1-543.3 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: **Sec. 543.3. IC 33-24-5.1-5 (Concerning immunity of a supreme court marshal).**

SECTION 10. IC 34-30-2.1-545.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: **Sec. 545.5. IC 33-25-4-5 (Concerning immunity of a court of appeals court marshal).**

SECTION 11. An emergency is declared for this act.



President of the Senate

President Pro Tempore

Speaker of the House of Representatives

Governor of the State of Indiana

Date: _____ Time: _____

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